

		The court GRANTS Petitioners’ request, albeit unnecessary. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. “[A]ll that is necessary is to call the court’s attention to such papers.” (Weil & Brown, Cal. Prac. Guide: Civil Proc. Before Trial (The Rutter Group 2024) ¶ 9.53.1a.) The City to Answer the Petition For Writ Of Mandate And Complaint For Injunctive And Declaratory Relief within 30 days. Petitioners to give notice. 7/21/25 CMC: The action is not yet at issue. The court sets Case Management Conference to Monday, July 21, 2025, at 10:00 am in Dept W8. All appearing parties SHALL file and serve a new and timely case management statement <u>at least 15 calendar days prior</u> to the hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369. Petitioners to give notice.
2	Stevenson vs. FCA US, LLC	<u>Demurrer</u> The court SUSTAINS Defendant FCA US LLC’s general demurrer to the third and fifth cause of action of the Complaint filed by EUGENE LANDERS STEVENSON. (Code of Civ. Proc., § 430.10(e).) Under the circumstances explained below, 30 days leave to amend is granted as to the third cause of action only. Should Plaintiff fail to timely amend, then Defendant SHALL have 30 days thereafter to file its Answer. The Complaint asserts five causes of action. The third cause of action is for a violation of Civil Code section 1793.2(a)(3). The fifth cause of action is for “fraudulent inducement – concealment.”

3rd C/A (violation of Civ. Code § 1793.2(A)(3))

Defendant argues that the third cause of action merely states generalized recitations of the Civil Code and improper conclusions of law, without alleging any facts whatsoever.

In his opposing papers, Plaintiff argues that Defendant essentially wants more specificity in the pleadings, that less specificity is required here because Defendant necessarily has those facts in its possession, and that details can be worked out in discovery.

As Defendant notes, statutory causes of action generally must be pleaded with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) Here, the Complaint essentially merely repeats the language of a statute, Civil Code section 1793.2(a)(3), leaving Defendant (and the court) in the dark as to the factual basis for the third cause of action. As such, the court SUSTAINS Defendant's demurrer to the third cause of action, with 30 days leave to amend.

5th C/A (fraudulent inducement – concealment)

Defendant argues that this fraud claim is not pled with the requisite specificity, especially against a corporate defendant. Defendant also argues that the economic loss rule bars the fifth cause of action.

Plaintiff argues that the fifth cause of action is “non-existent” and “[t]here is no fraud cause of action pled in this case”. (See, e.g., Opp’n Br. at p. 1, lines 15-16, 18.)

As mentioned above, the Complaint contains five causes of action, and the fifth cause of action is clearly for “fraudulent inducement – concealment”. See Complaint, paragraphs 54 through 62 and the heading at page 9, lines 1-3, which states in bold lettering,

**“FIFTH CAUSE OF ACTION
BY PLAINTIFF AGAINST DEFENDANT FCA
(Fraudulent Inducement - Concealment)”**

		As Plaintiff concedes there is no fraud, the court SUSTAINS the demurrer to the fifth cause of action without leave to amend. (See, e.g., <i>Setliff v. E. I. Du Pont de Nemours & Co.</i> (1995) 32 Cal.App.4th 1525, 1536 [“Plaintiff’s papers in opposition are reliable indications of his position on the facts and we may use these statements as admissions against him”].) Defendant to give notice.
3	Skarlat vs. Hoag Memorial Presbyterian	<u>Demurrer</u> <u>Motion to Strike</u> OFF-CALENDAR. Defendant HOAG MEMORIAL HOSPITAL PRESBYTERIAN filed a demurrer and a motion to strike on 9/26/24, both directed at the <i>original</i> Complaint. Plaintiff MICHAEL SKARLAT filed a First Amended Complaint (FAC) on 9/17/24. The filing of the FAC renders the demurrer and motion to strike moot since the original Complaint has been superseded and the FAC is now the operative pleading. (See, e.g., <i>State Comp. Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1131 [“Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint.”]; <i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477 [“the filing of an amended complaint renders moot a demurrer to the original complaint”].) Moving Defendant to give notice.
7	Blancas vs. Kimco Staffing Services, Inc.	<u>Motion to Compel Arbitration</u> The court GRANTS the Motion to Compel Arbitration filed by Petitioners RAFAEL BLANCAS, LIZET DE LA ROSA, CESAR CASIANO, ALAN CABANAS, CHRISTOPHER DRAKE, SCOTT MORENO, CRISTAL ESTRADA, ROBERT MEINHARDT, DEBBIE HERNANDEZ, and JOSE CAMACHO, as against Respondent KIMCO STAFFING SERVICES INC.